

Supreme Court of the State of New York
Appellate Division, First Judicial Department

PRESENT Hon. Sallie Manzanet-Daniels,
Peter H. Moulton
Ellen Gesmer
Barbara R. Kapnick
Marsha D. Michael,

Justice Presiding,

Justices.

In the Matter of Lucia Jaquez,
Petitioner-Respondent,

-against-

Motion No. 2025-02670
Index No. 154613/22
Case No. 2024-02497

Daniel Tietz, etc.,
Respondent-Appellant,

Gary Jenkins, etc.,
Respondent.

Legal Aid Society, Volunteers of Legal
Service, Bronx Legal Services, New York
Civil Liberties Union, Empire Justice Center
And National Center for Law and Economic
Justice,

Amici Curiae.

Respondent-appellant having moved for leave to appeal to the Court of Appeals from the decision and order of this Court, entered on April 03, 2025 (Appeal No. 4047),

Now, upon reading and filing the papers with respect to the motion, and due deliberation having been had thereon,

It is ordered that the motion is granted, and this Court, pursuant to CPLR 5713, certifies that the following question of law, decisive of the correctness of its determination, has arisen, which in its opinion ought to be reviewed by the Court of Appeals:

Was the order of this Court, which affirmed the order of the Supreme Court, New York County, properly made?

This Court further certifies that its determination was made as a matter of law and not in the exercise of discretion.

ENTERED: March 03, 2026

A handwritten signature in black ink, reading "Susanna Molina Rojas". The signature is fluid and cursive, with the first name "Susanna" and last name "Rojas" clearly distinguishable.

Susanna Molina Rojas
Clerk of the Court